

The Orissa Saw Mills and Saw Pits (Control) Rules, 1993

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State of Odisha - Act

The Orissa Saw Mills and Saw Pits (Control) Rules, 1993

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The Orissa Saw Mills and Saw Pits (Control) Rules, 1993

Rule THE-ORISSA-SAW-MILLS-AND-SAW-PITS-CONTROL-RULES-1993 of 1993

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The Orissa Saw Mills and Saw Pits (Control) Rules, 1993

Published vide Notification Orissa Gazette Extraordinary No. 1515 dated 18.11.1993, Notification No. S.R.O 1066/93-dated 17.11.1993

1.

Short Title and Commencement.

(1)

These rules may be called the Orissa Saw Mills and Saw Pits (Control) Rules, 1993.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

(1)

In these rules, unless the context otherwise requires-

(a)

Act means the Orissa Saw Mills and Saw Pits (Control) Act, 1991;

(b)

Conservator of Forests means the Conservator of Forests, incharge of a Territorial Circle;

(c)

Divisional Forest Officer means the Forest Officer in charge of a Territorial Forest Division;

(d)

Form means a form specified under these rules

(e)

Section means a section of the Act;

(f)

Government means the State Government of Orissa.

(2)

All other words and expressions used but not defined herein, unless the context otherwise requires shall have the same meaning as respectively assigned to them in the Act.

3.

Application for Licence.

(1)

Application to obtain a licence to establish a saw mill or a saw pit or to operate a saw mill or a saw pit in existence on the appointed day shall be made to the Licensing Officer.

(2)

The application for establishing a saw mill or a saw pit shall be in Form 'A' and the application for operating a saw mill or saw pit in existence on the appointed day shall be in Form 'B'.

(3)

An unrefundable fee of rupees five hundred or one hundred rupees shall be paid for each application for grant of licence for saw mill or saw pit, respectively.

(4)

The amount shall be payable to the Government Treasury under appropriate Head of Account.

(5)

Every such application shall be accompanied by a deposit of rupees one thousand as security deposit in shape of Bank guarantee in any Nationalised Bank.

(6)

The Licensing Officer while considering the application to grant the licence shall, apart from any other consideration which in his opinion justifies his action, consider the following-

(i)

Whether the site of the saw mill or saw pit is within such limits from the boundaries of any Reserve Forest, Protected Forest or other forest block in area :

(ii)

Whether establishment, renewal or continuance of saw mill or saw pit in the area is justified on the basis of the quantum of the timber output available for sawing in the area ?

(iii)

Whether the number of saw mills or saw pit both existing and proposed can be viably run in the area with reference to the quantum of wood that may be available for sowing;

(iv)

Whether establishment of saw mill or saw pit has already led to, or will lead to illicit felling of trees and be against the protection and conservation of forest and environment;

(v)

Whether the report has been found guilty of any forest offence of grave nature;

(7)

The Licensing Officer may after consideration, grant or refuse to grant the licence after recording reasons therefor.

4.

Grant of Licence.

(1)

The Licensing Officer shall grant the licence in Form 'C'.

(2)

The licence shall be subject to the following conditions-

(a)

Sawing operations in the saw mill and saw pit shall not be carried before 6 a. m. and after 6. p. m. unless it has been permitted by the Licensing Officer in writing.

(b)

The certified copies of the licence and the, permission granted under Clause (a) above, shall be displayed at a permanent place in the saw mill or saw pit.

(c)

The date-wise and log-wise account of stock of round wood and of sawn timber shall be maintained in the Forms D and E, respectively.

(d)

The registers of accounts shall, if so required, be produced for inspection before any Forest Officer not below the rank of a Forester having jurisdiction over the area, or any officer specially authorised by the Licensing Officer in writing in this behalf.

(e)

If the licensee or the person in charge of the operation of saw mill or saw pit has reason to believe that the wood brought to the saw mill or saw pit is illegal/authorised, he shall inform the nearest Range Officer as early as possible about the arrival of illicit wood and in no case the wood so brought shall be sawn.

(f)

The expansion of the saw mill or saw pit or change in its location shall not be carried out without the written permission of the Licensing Officer.

(3)

The licence shall be valid for two years from the date it was issued.

(4)

Before granting the licence to the applicant, the Licensing Officer shall show the copy of the conditions under which the licence is being granted and the form of accounts in which account of arrival, sawing and disposal of wood shall be maintained. The Licensing Officer shall get those conditions read before and contents of the forms explained to the applicant if he is not able to read. The Licensing Officer shall obtain the signatures or thumb impression, as the case may be, of the applicant as a token of his acceptance of these conditions. A copy of the conditions and forms in which accounts shall be maintained shall be supplied to the applicant.

If the licence is defaced/damaged/lost, a certified copy of the same can be obtained from the Licensing Officer on payment of rupees fifty for each licence.

5.

Renewal of Licence.

(1)

Every licensee shall apply to the Licensing Officer for renewal of the licence at least one month before which the licence is due to expire.

(2)

The application fee for renewal of the licence for saw mill shall be rupees one hundred and for saw pit shall be rupees ten.

(3)

The Licensing Officer after making such enquiry as he deems fit, may renew or may by order in writing for reasons to be stated therein, refuse to renew the licence :

Provided that no order refusing to renew the licence shall be passed unless the applicant has been given a reasonable opportunity of being heard.

(4)

The licence shall be renewed for two years only.

(5)

If application for a renewal of a licence made within the time referred to in Sub-rule (11) is not disposed of by the Licensing Officer before the date of expiry of the licence, the licence shall be deemed to have been renewed under the Act.

(6)

The licence shall be renewed on the same conditions on which it was granted.

(7)

Unless there are reasons to the contrary, the licence shall ordinarily be renewed.

6.

Submission of Returns.

(1)

The licensee shall maintain a register of the date-wise and log-wise receipt of round wood and disposal of the same in Form D.

(2)

The licensee shall maintain a register of date-wise and log-wise sawing of wood and disposal of sawn wood in Form E.

(3)

The licensee shall maintain a register of the month-wise abstract of the receipt of logs disposal in round, sawing, sawn outturn and disposal of sawn wood in Form F.

(4)

A copy of these registers shall be submitted as monthly return to the Licensing Officers through the concerned Range Officer by the 10th day of the succeeding month.

7.

Installation of Electric Connection.

(1)

Licensing Officer shall give a list of persons along with the name of saw mills who have obtained licence for operating saw mills or for establishing and operating a saw mill, to the concerned Superintending Engineer of the Orissa State Electricity Board.

(2)

The Licensing Officer shall give a list of persons along with name of saw mill who are operating the saw mill without a valid licence or whose licence has either been revoked or suspended.

(3)

The Licensing Officer shall inform the name of persons, with name and location of the saw mill as soon as it comes to his knowledge that the person is operating the saw mill without a valid licence to the concerned Superintending Engineer of the Orissa State Electricity Board.

(4)

The Orissa State Electricity Board shall ensure that only these saw mills which are operating under a valid licence obtained from the concerned Licensing Officer, are supplied with the electric energy.

(5)

The concerned Superintending Engineer of the Orissa State Electricity Board shall, either on a reference made to him in this behalf or otherwise, that a saw mill is being operated without a valid licence take immediate measures to disconnect the supply of electric energy to such unlicensed saw mills.

(6)

Where the saw mill operating without a valid licence is using electric energy for purpose other than sawing, the supply of electric energy shall remain disconnected till a valid licence is obtained by the owner of the saw mill or the plants and machinery, implements and equipments which are used in operation of the saw mill are disposed of.

Form-A

[See Rule 3 (2)]

Application for Grant of Licence for Establishing and Operating a Saw Mill/Saw Pit

1. Applicant's name and his father's name in full (in case of company give names of partners and of persons holding

power of attorney to act on behalf of the company).

2. Profession

3. Full address

4. Details of proposed location of Saw Mill Saw Pit (location map will also be attached).

5. Is applicant already owning and operating any other Saw Mill/Saw Pit ?

6. If answer to (5) is 'Yes' give details of the saw mill/saw pit.

(a)

Make and year of sawing machine

(b)

No of sawing machine

(c)

Type of motive force and its horse-power

(d)

Monthly capacity

(e)

Any other information

7. Monthly capacity of the Saw Mill Saw Pit to be established

8.

Species of wood that would be generally sawn

9.

Source from where the wood is obtained

10.

The period in which Saw Mill Saw Pit will be established

11.

Details of Saw Mill to be established

(a)

No. of sawing machine

(b)

Type of motive force and its horse-power

(c)

Any other information

12.

Any other activity which is proposed to be carried out in the Saw Mill/Saw Pit.

13.

Evidence of payment of application fee.

14.

Evidence of payment of security deposit.

15.

(a) Whether the applicant was found guilty of any forest offences earlier?

(b)

If yes, particulars of such offences

16.

Whether trial of any forest offence is pending against the applicant, and if yes, the particulars may be mentioned

Declaration

I/We..... hereby declare that I/We have read and understood all the provisions of the Orissa Saw Mills and Saw Pits (Control) Act, 1991 and the rules made thereunder and I/We agree to abide by the same along with the conditions of licence.

Dated.....

Signature of the applicant

Form-B

[See Rule 3 (2)]

Application for Grant of Licence for Operating Existing Saw Mill/Saw Pit

1. Applicant's name and his father's name in full (in case of company, give name of partners and of persons holding powers of attorney to act on behalf of the company)
2. Profession
3. Full address
4. Details of location of the Saw Mill/Saw Pit (location map and sketch map of Saw Mill/ Saw Pit will also be attached)
5. Details of the Saw Mill
 - (a) Make and year of sawing machine
 - (b) Horse power of the electrical or Mechanical motor
 - (c) No. of sawing machine
 - (d) Type of motive power
 - (e) Any other information
6. Monthly capacity of the saw mill/saw pit
7. Species of wood that are generally sawn
8. Source from where the wood is obtained
9. Besides, sawing any other activity which is carried out in the saw mill/saw pit
10. Details of any other saw mill/saw pit for which licence has already been obtained or applied for
11. Evidence of payment of application fee
12. Evidence of payment of security deposit
13. (a) Whether the applicant was found guilty of any forest offence earlier?
 - (b) If yes, the particulars of such offences
14. Whether trial of any forest offence is pending against the applicant and if yes, the particulars may be mentioned

Declaration

I/We..... hereby declare that I/We have read and understood all the provisions of the Orissa Saw Mill and Saw Pits (Control) Act, 1991 and the rules made thereunder and I/We agree to abide by the same along with the conditions of licence.

Date :

Signature of the applicant

Form-C

[See Rule 4 (1)]

The licence for operating the established Saw Mill/Saw Pit establishing and operating a Saw Mill or saw Pit

(This form shall also be used for renewing the licence)

1. Applicant's name and his fathers name in full (In case of company give names of partners and of person holding power).
2. Profession
3. Full address
4. Details of location of Saw Mill/Saw Pit
5. Legal status of the land and title of ownership of the land on which Saw Mill/Saw Pit is established or proposed to be established
6. Details of Saw Mill
 - (a) Make and year of sawing machine
 - (b) No. of sawing machine
 - (c)

Type of motive force and horse power

7. Monthly capacity of the saw mill/saw pit (Approx.)

8. Species of wood that would be generally sawn

9. The period in which Saw Mill/Saw Pit will be established

10. Activity other than sawing which will be carried out in the Saw Mill/Saw Pit

11. Period for which the licence is being granted/ renewed.

Note - The conditions under which licence is being granted and the forms in which account shall be maintained has been given to the licensee and the same has been fully explained to him and the signature/thumb impression of the licensee has been obtained as a token of this.

Place.....

Signature of Licensing Officer

Date.....

Name.....

(Seal of the Office)

Form-D

Stock Register of Round 700-D Logs

Date

Permit dates on the strength of which the logs

were brought to the saw mill/saw pit

Running serial No. assigned to the individual

logs by the saw mill

Species

Dimension

Volume

(1)

(2)

(3)

(4)

(5)

(6)

Serial No. of the log fed to the saw mill during

the day

Serial No. of the undisposed of wood during the

day

Permit details of disposal of the log and removal

from the saw mill premises

Serial No. of logs lying in round form undisposed

at the end of the day

(7)

(8)

(9)

(10)

1. Licence is not transferable.

2. The licencees shall maintain the registers in Forms D, E, F and post them up to date at the end of each day by 8 p.m. of the day.

3. The registers shall be produced for inspection and check when demanded by any Forest Officer of and above the rank of Forester. Any such Forest Officer shall have the power to enter into the premises of this Saw Mill or Saw Pit for the purpose of inspection and securing compliance with the condition of the licence and any obstruction given in coming out, the said inspection and non-production of registers shall be deemed to be violation on the conditions of the licence.

4. Monthly consolidated account shall be submitted to Divisional Forest Officer before the 10th of the succeeding month.

5. The saw mill or saw pit as well as the timber shall be open for inspection by the Officer mentioned in condition (3)

whenever required.

6. The saw mill or saw pit shall be closed at the end of the period prescribed in the licence and the licence shall be returned to the Divisional Forest Officer.

7. The licence shall not undertake sawing of timber belonging to other persons or job work, unless he is satisfied about the bona fides of such timber by examining the connected permits and the marks on the timber.

8. If the bona fides of the timber is suspected, he shall detain it and immediately report the fact to the nearest Forest Officer or Police Officer for taking further action.

9. The timber received from other persons for sawing on job work shall be stacked separately both before and after sawing.

10. For breach of any of the above conditions, the licence is liable to be cancelled and the offender is liable to punishment as provided under Section 14 of the Act.

Signature of Licensing Officer

Form-E

Sawing and Sawn Timber Account

Date of sawing

Serial No. of the log in the D. Register

Species

Dimensions

Volume

Sawn outturn

Total Vol. of sawn wood obtained on the day

Size and their volume

Firewood

Species

Vol. of sizes

Firewood

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

Balance stock of sawn sizes and firewood lying from the previous day

Disposal and removal from the saw mill during the day

Balance stock at the end of the day

Species

Vol. of sawn wood

Firewood volume

T. P. Details

Species

Sawn sizes vol.

Firewood Vol.

Species

Vol. of sawn

Vol. of firewood

- (11)
(12)
(13)
(14)
(15)
(16)
(17)
(18)
(19)
(20)
Form-F
Monthwise Abstract of the Receipt and Disposal of Logs and Sawn Wood
Month
Round logs received
Sawing
Spp.
No. of logs (mention Sl. No. of the logs)
Volume
Spp.
No. of logs (mention Sl. No. of the logs)
Vol. in rounded
Sawn vol. detailed
Firewood detailed (volume)
(1)
(2)
(3)
(4)
(5)
(6)
(7)
(8)
(9)
Disposal in round
Disposal of sawn/firewood
Balance stock at the close of the month
Spp.
No. of logs (mention Sl. Nos. of the logs)
Volume
Spp.
Sawn sizes Vol.
Firewood
Round logs
Sawn wood
Firewood
Spp.
No. of logs (mention Sl. Nos. of the logs)
Vol.
Spp.
Vol.
Vol.
(10)

- (11)
- (12)
- (13)
- (14)
- (15)
- (16)
- (17)
- (18)
- (19)
- (20)
- (21)

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